

		seeks to correct certain typographical errors in the operative pleading. No opposition to the motion was filed. The Court finds it is in furtherance of justice to allow the filing of the proposed amended complaint. The Court notes that the proposed pleading states that a copy of the subject agreement is attached as Exhibit 1; however, nothing is attached to the proposed pleading. This defect should be corrected before the proposed pleading is filed. Plaintiff shall file the Second Amended Complaint no later than August 28, 2026, and serve it according to the Code of Civil Procedure. OSC/Service is off calendar. CMC set on 10-5-26 at 9:00 a.m.
9	R & M Veady, Inc. vs. Tran 2024-01448302	Motion for Terminating Sanctions Plaintiff R&M Veady, Inc's unopposed motion for terminating sanctions, issue and/or evidentiary sanctions is denied without prejudice. Plaintiff's request for monetary sanctions against Defendants Thuy Thi Tran and Thomas Quach is granted. Defendants are ordered to pay \$1800.00 (\$900 each) to Plaintiff within 20 days of the notice of this ruling. Terminating sanctions are only appropriate when a party persists in disobeying the court's orders such that the ultimate sanctions of dismissing the action or entering default judgment, etc. are justified. (<i>See Deyo v. Kilbourne</i> (1978) 84 Cal. App. 3d 771, 796.) Here, thus far, Defendants have only disobeyed the Court's 4/27/26 Order. Before imposing terminating, issue or evidentiary sanctions, the Court will allow Defendants one additional opportunity to comply with that order, and serve further responses to Plaintiff's discovery and pay the outstanding monetary sanctions. Accordingly, the Court reiterates its order from 4/27/26. In addition to the monetary sanctions imposed today, Defendants Thuy Thi Tran and Thomas Quach are ordered to serve further responses to Plaintiff's form interrogatories set one, and pay monetary sanctions to Plaintiff in the amount of \$2700 total within 20 days of the notice of ruling. Plaintiff shall give notice of the ruling.

10	Thomas Vogeles & Associates, APC vs. Kern River Corridor Endowment and Holding Co., 2025-01491400	Motion to Compel Further Responses to Form Interrogatories / Motion to Compel Production / Motion to Compel Response to Requests for Admissions Plaintiff Thomas Vogeles & Associates, APC's motion to compel defendant Kern River Corridor Endowment and Holding Co. to provide further response to form interrogatories, set one, is granted. [ROA #58.] Defendant is to serve a verified, Code compliant response to form interrogatory no. 50.2 no later than August 28, 2026. Plaintiff is awarded sanctions of \$750 against Defendant, to be paid to Plaintiff's counsel no later than August 28, 2026. Plaintiff's motion to compel Defendant to provide further responses to requests for admission, set one, nos. 51 and 52, is granted. [ROA #63.] Defendant is to serve verified, Code compliant responses without objection no later than August 28, 2026. Plaintiff is awarded sanctions of \$750, to be paid to Plaintiff's counsel no later than August 28, 2026. Plaintiff's motion to compel Defendant to provide further responses to requests for production, set one, nos. 1-17, is granted. [ROA #54.] Defendant is to provide verified, Code compliant responses without objection no later than August 28, 2026. Plaintiff is awarded sanctions of \$1,225 against Defendant, to be paid to Plaintiff's counsel not later than August 28, 2026. Facts This is an action by a law firm to recover attorneys' fees of about \$4 million it contends are due under a retainer agreement based on a settlement obtained for its client, defendant Kern River Corridor Endowment and Holding Co. ("KRC"). Plaintiff alleges that it had prior experience and expertise in the particular type of trespass dispute between KRC and Chevron, so KRC retained Plaintiff to represent KRC on the existing complaint and possibly in negotiations with Chevron. [Complaint (ROA # 2), ¶¶ 7-11.] According to Plaintiff, after almost four years of work, in 2023, KRC reached a settlement with Chevron for Chevron to pay \$11 million and then \$50,000 annually. This agreement was orally approved by KRC's representative to Plaintiff, Fallgatter, confirmed in writing, and